IN THE COURT OF SMALL CAUSES AT MUMBAI

R.A.E. Suit No. 1187 of 2025

(Fictional sample case for demonstration)

Shri Prakash Mehta, resident of Dadar (West), Mumbai ... Plaintiff (Landlord)

versus

Shri Ganesh Pawar, occupying Room No. 7, Sai Kripa Chawl, Dadar (West) ... Defendant (Tenant)

SUIT FOR EVICTION UNDER SECTIONS 15 AND 16(1)(g) OF THE MAHARASHTRA RENT CONTROL ACT, 1999

1. The Defendant has been a monthly tenant of Room No. 7 since 1998 at a present rent of Rs. 2,500 per month. The tenancy is governed by the Maharashtra Rent Control Act, 1999.

2. ARREARS: The Defendant has not paid rent from April 2024 to May 2025, i.e. 14 months, amounting to Rs. 35,000. A notice demanding the arrears was served on 10.06.2025. The Defendant did not pay within ninety days of the notice.

3. BONA FIDE REQUIREMENT: The Plaintiff's son is getting married in December 2025 and needs a separate residence. The Plaintiff's own flat in the same building has only one room. The Plaintiff says he has no other suitable accommodation in Mumbai.

DEFENDANT'S WRITTEN STATEMENT

4. The Defendant states that he sent the rent every month by money order from April 2024, but the Plaintiff refused to accept it in order to create a ground for eviction. He has produced 9 money-order receipts marked "refused".

5. The Defendant states that the Plaintiff owns another flat in Thane which has been lying vacant since 2023, so the claimed need is not genuine. He also says that he and his family of five have no other place to live, and that eviction would cause greater hardship to him than refusal would cause to the Plaintiff.

6. The Defendant has deposited Rs. 35,000 in Court on 05.09.2025, after receiving the summons.

Fictional sample case for LexAgent – not a real court record

RELIEF SOUGHT

The Plaintiff prays for a decree of eviction, arrears of rent of Rs. 35,000, and mesne profits from the date of the suit until possession is handed over.